

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

-----X
MICHAEL HOLDEN

Plaintiffs,

-against-

**THE CITY OF NEW YORK, POLICE OFFICER
BOBBY GLOVER, SHIELD NO.:14082,
POLICE OFFICER JOSEPH NAPOLITANO,
SHIELD NO: 21595 and OFFICERS JOHN AND
JAMES DOE, names presently unknowable by
Plaintiff, and meant to designate additional
offending officers,**

Defendants.
-----X

To the above named Defendant(s):

You are hereby summoned to answer the Complaint in this action and serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint to be assessed by the Court.

**Dated: New York, New York
July 18, 2019**

Yours, etc.,


MARNI F. SCHLESINGER, ESQ.

APICELLA & SCHLESINGER
Attorneys for Plaintiff
1454 St. Nicholas Avenue
New York, NY 10033
(212) 568-4245

DEFENDANT ADDRESSES:

THE CITY OF NEW YORK
100 Church Street, 4th Floor
New York, NY 10007

POLICE OFFICER BOBBY GLOVER, SHIELD NO.: 14082

Highway District
198-15 Grand Central Pkwy
Hollis, NY 11423

POLICE OFFICER JOSEPH NAPOLITANO, SHIELD NO.: 21595

Highway District 3
198-15 Grand Central Pkwy
Hollis, NY 11423

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

-----X
MICHAEL HOLDEN,

Plaintiff,

COMPLAINT

-against-

Index No.:

**THE CITY OF NEW YORK, POLICE OFFICER
BOBBY GLOVER, SHIELD NO.:14082,
POLICE OFFICER JOSEPH NAPOLITANO,
SHIELD NO: 21595 and OFFICERS JOHN AND
JAMES DOE, names presently unknowable by
Plaintiff, and meant to designate additional
offending officers,**

Defendants,
-----X

Plaintiff, Michael Holden, by his attorney, Marni F. Schlesinger, a member of the law firm, Apicella & Schlesinger, complaining of the Defendants herein, upon information and belief respectfully alleges:

PRELIMINARY STATEMENT

1. This is a civil action in which the Plaintiff Michael Holden, seeks relief for false arrest, false imprisonment, malicious prosecution, assault, police brutality and violation of his rights secured by 42 §§ USC 1981, 1983 and 1985, and for negligent hiring, training and retention of the officers involved in this incident, the Fourth and Fourteenth Amendments to the United States Constitution.
2. The claims arise from a May 10, 2017, incident in which Officers of the New York City Police Department acting under color of state law, intentionally and willfully subjected Plaintiff, MICHAEL HOLDEN to inter alia false arrest using excessive force

and malicious prosecution.

3. Plaintiff seeks monetary damages (special compensatory, and punitive) against Defendants as an award of costs, fees, and such other and further relief as this Court deems just and proper.

FACTS

4. That on or about the 1st day of May, 2019, the Plaintiff, filed a Late Notice of Claim pursuant to the order of Justice Ernest F. Hart, dated April 17, 2019, sworn to by plaintiff, and served upon the defendants, THE CITY OF NEW YORK, which Notice of Claim set forth the name and post office address of the plaintiff and of his attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose, and the items of damage or injuries claimed to have been sustained so far as then practicable.
5. That no 50-H hearing has been held to date, as Defendants have not called for one.
6. That more than thirty (30) days have elapsed from the presentation of the aforesaid Notice of Claim and the defendants have failed and neglected to settle or adjust the claim.
7. That action was commenced within the permitted time as applicable by law.
8. That at all times hereinafter mentioned plaintiff, was a resident of the County of Queens, City and State of New York.
9. That on May 10, 2017, at approximately 11:00 P.M., at the intersection of the Long Island Expressway and Clearview Expressway, City and State of New York, Plaintiff was pulled over for allegedly speeding. After harsh words were exchanged between Plaintiff and Defendants, Police Officers Bobby Glover, Police Officer Joseph Napolitano, and other

officers of the NYPD, suddenly and without warning maced and unlawfully beat, assaulted, falsely arrested the Plaintiff. Plaintiff was then held within the custody of police officers from the New York City Police Department, their agents, servants and or employees, County of Queens, City and State of New York.

10. Thereafter, Claimant was detained and arrested against his will and without probable cause, handcuffed behind his back, and taken into custody of the New York City Police Department against his will and transported handcuffed in a police vehicle to the Jamaica Hospital, County of Queens, City and State of New York, where he was treated.
11. There, he was searched, and shackled to a bed. Thereafter Claimant was placed in a police vehicle, handcuffed and transported to Central Booking where he was fingerprinted, photographed, then placed in a cell with others where he was detained and held against his will. The Claimant was held against his will by Police Officers of the New York City Police Department altogether for a period of three (3) days in which the Claimant should have been at liberty.
12. That at all times hereinafter mentioned plaintiff was wrongfully, without provocation and without probable cause, detained, arrested, harassed, confined, assaulted, battered, beaten and strip searched and otherwise abused, beginning May 10, 2017 and continuing up through and including May 13, 2017 as aforesaid. That as a result of the arrest of May 10, 2017, Michael Holden was incarcerated for an extended period of time.
13. That upon information and belief, on July 26, 2018, PLAINTIFF pled guilty to disorderly conduct. It is alleged that there did not exist legally sufficient and or legally competent evidence for MICHAEL HOLDEN to have been arrested, detained, confined,

harassed, assaulted, battered, beaten and otherwise abused.

14. As a result of the foregoing, plaintiff was caused to sustain damages and personal injury, including, but not limited to bodily injury, deprivation of liberty, physical and mental suffering, indignity, humiliation, shame and disgrace, loss of personal effects, and was caused to expend sums for legal services and other expenses.
15. That defendants' conduct in detaining, arresting, confining, assaulting, battering, harassing, and otherwise abusing the Plaintiff as aforementioned under the circumstances of this case was so egregious as to deviate from acceptable police conduct and police activity as to demonstrate an intentional, wanton and/or reckless disregard for proper procedures and the rights of the Plaintiff.
16. As a result thereof, Plaintiff was damaged in a sum far in excess of the jurisdictional limits of this Court pursuant to CPLR 3017 (e).

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFF MICHAEL HOLDEN FOR FEDERAL CLAIM OF FALSE ARREST & FALSE IMPRISONMENT AS AGAINST POLICE OFFICER BOBBY GLOVER, POLICE OFFICER JOSEPH NAPOLITANO, and OFFICERS JOHN AND JAMES DOE, names presently unknowable by Plaintiff, and meant to designate additional offending officers, were employed by the CITY, as police officers.

17. The PLAINTIFF, MICHAEL HOLDEN, hereby incorporates by reference each and every preceding paragraph 1-16 of this Complaint as though fully plead and re-alleged in their entirety below.
18. That the actions of the Defendants Police Officers of the Highway District and NYPD Highway Patrol Unit 3, POLICE OFFICER BOBBY GLOVER, POLICE

OFFICER JOSEPH NAPOLITANO, and OFFICERS JOHN AND JAMES DOE, names presently unknowable by Plaintiff, and meant to designate additional offending officers, were employed by the CITY, as police officers, caused **PLAINTIFF** to be unlawfully seized, unlawfully searched, and falsely arrested and imprisoned without probable cause in violation of **PLAINTIFF's** right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

19. By the reason of the foregoing, **PLAINTIFF**, was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous attacks and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and **PLAINTIFF** will be permanently caused to suffer pain and inconvenience and other effects of such injuries; and **PLAINTIFF** has incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of such said injuries; and **PLAINTIFF** has suffered and in the future will necessarily suffer additional loss of time from his usual pursuits, duties and activities; and **PLAINTIFF** will be unable to pursue **PLAINTIFF's** usual duties with the same degree of efficiency as prior to this occurrence all to **PLAINTIFF's** great damage.
20. By the reason of the foregoing, **PLAINTIFF** has been damaged in an amount exceeding the jurisdictional limits of all lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF PLAINTIFF,
MICHAEL HOLDEN FOR FEDERAL CLAIM OF MALICIOUS PROSECUTION
AGAINST POLICE OFFICER BOBBY GLOVER, POLICE OFFICER JOSEPH
NAPOLITANO, and OFFICERS JOHN AND JAMES DOE, names presently unknowable**

by Plaintiff, and meant to designate additional offending officers, were employed by the CITY, as police officers.

21. The PLAINTIFF, MICHAEL HOLDEN, hereby incorporates by reference each and every preceding paragraph 1-20 of this Complaint as though fully plead and re-alleged in their entirety below.
22. That the actions of the Defendants Police Officers of the Highway District and NYPD Highway Patrol Unit 3, POLICE OFFICER BOBBY GLOVER, POLICE OFFICER JOSEPH NAPOLITANO, and OFFICERS JOHN AND JAMES DOE, names presently unknowable by Plaintiff, and meant to designate additional offending officers, were employed by the CITY, as police officers., despite knowing that probable cause did not exist to arrest and prosecute PLAINTIFF, the defendants acted as set forth in the previous claim to cause PLAINTIFF to be arrested and prosecuted. The defendants' conduct violated PLAINTIFF's rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution pursuant to 42 U.S.C. § 1983.
23. Specifically, defendants knew or in the absence of their deliberate and reckless indifference to the truth, should have known that PLAINTIFF did not do anything wrong, did not do anything to cause or bring about his arrest and that probable cause did not exist to arrest and prosecute PLAINTIFF.
24. That the said malicious prosecution was initiated by Defendant Police Officers of the Highway District and NYPD Highway Patrol Unit 3, POLICE OFFICER BOBBY GLOVER, POLICE OFFICER JOSEPH NAPOLITANO, and OFFICERS JOHN AND JAMES DOE, names presently unknowable by Plaintiff, and meant to designate

additional offending officers, were employed by the CITY, as police officers, without any legal justification and clearly without any probable cause as the PLAINTIFF had acted absolutely appropriately.

25. By the reason of the foregoing, PLAINTIFF, was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous attacks and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and PLAINTIFF will be permanently caused to suffer pain and inconvenience and other effects of such injuries; and PLAINTIFF has incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of such said injuries; and PLAINTIFF has suffered and in the future will necessarily suffer additional loss of time from his usual pursuits, duties and activities; and PLAINTIFF will be unable to pursue PLAINTIFF's usual duties with the same degree of efficiency as prior to this occurrence all to PLAINTIFF's great damage.
26. By the reason of the foregoing, PLAINTIFF has been damaged in an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MICHAEL HOLDEN FOR STATE LAW TORT FALSE
ARREST/IMPRISONMENT AS AGAINST POLICE OFFICER BOBBY GLOVER,
POLICE OFFICER JOSEPH NAPOLITANO, and OFFICERS JOHN AND JAMES DOE,
names presently unknowable by Plaintiff, and meant to designate additional offending
officers, were employed by the CITY, as police officers

27. The PLAINTIFF, MICHAEL HOLDEN, hereby incorporates by reference each and every preceding paragraph 1-26 of this Complaint as though fully plead and re-alleged in their entirety below.

28. That the actions of the Defendants Police Officers of the Highway District and NYPD Highway Patrol Unit 3, **POLICE OFFICER BOBBY GLOVER, POLICE OFFICER JOSEPH NAPOLITANO, and OFFICERS JOHN AND JAMES DOE,** names presently unknowable by Plaintiff, and meant to designate additional offending officers, were employed by the **CITY**, as police officers, constitutes false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine **PLAINTIFF** and, in fact, confined **PLAINTIFF**, and **PLAINTIFF** was conscious of the confinement. In addition, **PLAINTIFF** did not consent to the confinement and the confinement was not otherwise privileged.
29. By the reason of the foregoing, **PLAINTIFF**, was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous attacks and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and **PLAINTIFF** will be permanently caused to suffer pain and inconvenience and other effects of such injuries; and **PLAINTIFF** has incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of such said injuries; and **PLAINTIFF** has suffered and in the future will necessarily suffer additional loss of time from his usual pursuits, duties and activities; and **PLAINTIFF** will be unable to pursue **PLAINTIFF's** usual duties with the same degree of efficiency as prior to this occurrence all to **PLAINTIFF's** great damage .
30. By the reason of the foregoing, **PLAINTIFF** has been damaged in an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION

**ON BEHALF OF PLAINTIFF MICHAEL HOLDEN FOR ASSAULT AS AGAINST
POLICE OFFICER BOBBY GLOVER, POLICE OFFICER JOSEPH NAPOLITANO,
and OFFICERS JOHN AND JAMES DOE, names presently unknowable by Plaintiff, and
meant to designate additional offending officers, were employed by the CITY, as police
officers.**

31. The PLAINTIFF, MICHAEL HOLDEN, hereby incorporates by reference each and every preceding paragraph 1-30 of this Complaint as though fully plead and re-alleged in their entirety below.
32. That the Defendants Police Officers of the Highway District and NYPD Highway Patrol Unit 3, POLICE OFFICER BOBBY GLOVER, POLICE OFFICER JOSEPH NAPOLITANO, and OFFICERS JOHN AND JAMES DOE, names presently unknowable by Plaintiff, and meant to designate additional offending officers, were employed by the CITY, as police officers, intentionally, willfully, and maliciously assaulted PLAINTIFF in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the PLAINTIFF, and that such acts caused apprehension of such contact in the PLAINTIFF.
33. By the reason of the foregoing, PLAINTIFF, was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous attacks and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and PLAINTIFF will be permanently caused to suffer pain and inconvenience and other effects of such injuries; and PLAINTIFF has incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of

such said injuries; and **PLAINTIFF** has suffered and in the future will necessarily suffer additional loss of time from his usual pursuits, duties and activities; and **PLAINTIFF** will be unable to pursue **PLAINTIFF's** usual duties with the same degree of efficiency as prior to this occurrence all to **PLAINTIFF's** great damage.

34. By the reason of the foregoing, **PLAINTIFF** has been damaged in an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF MICHAEL HOLDEN FOR BATTERY AS AGAINST POLICE OFFICER BOBBY GLOVER, POLICE OFFICER JOSEPH NAPOLITANO, and OFFICERS JOHN AND JAMES DOE, names presently unknowable by Plaintiff, and meant to designate additional offending officers, were employed by the CITY, as police officers.

35. The **PLAINTIFF, MICHAEL HOLDEN**, hereby incorporates by reference each and every preceding paragraph 1-34 of this Complaint as though fully plead and re-alleged in their entirety below.
36. That the Defendants Police Officers of the Highway District and NYPD Highway Patrol Unit 3, **POLICE OFFICER BOBBY GLOVER, POLICE OFFICER JOSEPH NAPOLITANO, and OFFICERS JOHN AND JAMES DOE**, names presently unknowable by Plaintiff, and meant to designate additional offending officers, were employed by the **CITY**, as police officers, intentionally, willfully, and maliciously battered **PLAINTIFF**, when they, in a hostile and/or offensive manner touched and pulled **PLAINTIFF's** hands backward and maliciously placed handcuffs tightly on his hand with his consent and with the intention of causing harmful and/or offensive bodily contact to the **PLAINTIFF** and caused such battery.

37. By the reason of the foregoing, **PLAINTIFF**, was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous attacks and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and
38. **PLAINTIFF** will be permanently caused to suffer pain and inconvenience and other effects of such injuries; and **PLAINTIFF** has incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of such said injuries ; and **PLAINTIFF** has suffered and in the future will necessarily suffer additional loss of time from his usual pursuits, duties and activities; and **PLAINTIFF** will be unable to pursue **PLAINTIFF's** usual duties with the same degree of efficiency as prior to this occurrence all to **PLAINTIFF's** great damage.
39. By the reason of the foregoing, **PLAINTIFF** has been damaged in an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF MICHAEL HOLDEN FOR FAILURE TO INTERVENE AS AGAINST POLICE OFFICER BOBBY GLOVER, POLICE OFFICER JOSEPH NAPOLITANO, and OFFICERS JOHN AND JAMES DOE, names presently unknowable by Plaintiff, and meant to designate additional offending officers, were employed by the CITY, as police officers

40. The **PLAINTIFF**, **MICHAEL HOLDEN**, hereby incorporates by reference each and every preceding paragraph 1-39 of this Complaint as though fully plead and re-alleged in their entirety below.
41. That the Defendants Police Officers of the Highway District and NYPD Highway Patrol Unit 3, **POLICE OFFICER BOBBY GLOVER, POLICE OFFICER JOSEPH**

NAPOLITANO, and OFFICERS JOHN AND JAMES DOE, names presently unknowable by Plaintiff, and meant to designate additional offending officers, were employed by the CITY, as police officers, had an affirmative duty to intervene on behalf of PLAINTIFF, whose constitutional rights were being violated in their presence by other police officers.

42. **That Defendants failed to intervene to prevent the unlawful conduct described herein. That as a result of the foregoing, PLAINTIFF's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.**
43. **By the reason of the foregoing, PLAINTIFF, was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous attacks and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and PLAINTIFF will be permanently caused to suffer pain and inconvenience and other effects of such injuries; and PLAINTIFF has incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of such said injuries; and PLAINTIFF has suffered and in the future will necessarily suffer additional loss of time from his usual pursuits, duties and activities; and PLAINTIFF will be unable to pursue PLAINTIFF's usual duties with the same degree of efficiency as prior to this occurrence all to PLAINTIFF's great damage .**
44. **By the reason of the foregoing, PLAINTIFF has been damaged in an amount exceeding the jurisdictional limits of all lower Courts.**

**AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF
MICHAEL HOLDEN FOR NEGLIGENCE AS AGAINST and OFFICERS JOHN AND
JAMES DOE, names presently unknowable by Plaintiff, and meant to designate additional
offending officers, were employed by the CITY, as police officers**

45. The PLAINTIFF, MICHAEL HOLDEN, hereby incorporates by reference each and every preceding paragraph 1-44 of this Complaint as though fully plead and re-alleged in their entirety below.
46. That the Defendants Police Officers of the Highway District and NYPD Highway Patrol Unit 3, POLICE OFFICER BOBBY GLOVER, POLICE OFFICER JOSEPH NAPOLITANO, and OFFICERS JOHN AND JAMES DOE, names presently unknowable by Plaintiff, and meant to designate additional offending officers, owed a duty of care to PLAINTIFF.
47. That Defendants breached that duty care by unlawfully and willfully misinterpreting incident facts, wrongfully application of the law and policy against PLAINTIFF, falsely arresting, and illegally searching PLAINTIFF.
48. That all the foregoing occurred without any fault or provocation by PLAINTIFF.
50. By the reason of the foregoing, PLAINTIFF, was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous attacks and mental anguish, great physical pain and emotional upset, some of which injuries are pennant in nature and duration, and PLAINTIFF will be permanently caused to suffer pain and inconvenience and other effects of such injuries; and PLAINTIFF has incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of such said injuries; and PLAINTIFF has suffered and in the future will necessarily suffer

additional loss of time from his usual pursuits, duties and activities; and PLAINTIFF will be unable to pursue PLAINTIFF's usual duties with the same degree of efficiency as prior to this occurrence all to PLAINTIFF's great damage .

51. By the reason of the foregoing, PLAINTIFF has been damaged in an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MICHAEL HOLDEN FOR NEGLIGENT INFLICTION
OF EMOTIONAL DISTRESS AS AGAINST OFFICERS JOHN AND JAMES DOE, names
presently unknowable by Plaintiff, and meant to designate additional offending officers,
were employed by the CITY, as police officers.

52. The PLAINTIFF, MICHAEL HOLDEN, hereby incorporates by reference each and every preceding paragraph 1-51 of this Complaint as though fully plead and re-alleged in their entirety below.
53. That by the actions described herein, Defendants Police Officers of the Highway District and NYPD Highway Patrol Unit 3, POLICE OFFICER BOBBY GLOVER, POLICE OFFICER JOSEPH NAPOLITANO, and OFFICERS JOHN AND JAMES DOE, names presently unknowable by Plaintiff, and meant to designate additional offending officers, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to PLAINTIFF. The acts and conduct of the defendants were the direct and proximate cause of injury and damages to PLAINTIFF and violated PLAINTIFF's statutory and common law rights as guaranteed

PLAINTIFF by the laws and Constitution of the State of New York.

54. By the reason of the foregoing, **PLA INTIFF**, was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous attacks and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and **PLAINTIFF** will be permanently caused to suffer pain and inconvenience and other effects of such injuries; and **PLAINTIFF** has incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of such said injuries; and **PLAINTIFF** has suffered and in the future will necessarily suffer additional loss of time from his usual pursuits, duties and activities; and **PLAINTIFF** will be unable to pursue **PLAINTIFF's** usual duties with the same degree of efficiency as prior to this occurrence all to **PLAINTIFF's** great damage.
55. By the reason of the foregoing, **PLAINTIFF** has been damaged in an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A NINTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MICHAEL HOLDEN FALSE ARREST/
IMPRISONMENT AGAINST THE DEFENDANT CITY OF NEW YORK

56. The **PLAINTIFF**, **MICHAEL HOLDEN**, hereby incorporates by reference each and every preceding paragraph 1-55 of this Complaint as though fully plead and re-alleged in their entirety below.
57. That on all the above occasions the Defendant **CITY**, their agents, servants and employees in their failure to hire, train, supervise and discipline or in any other way control the Defendants in their exercise of their functions to enforce the law of the state

and CITY, did act willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of the State of New York including, in this instance, the PLAINTIFF.

58. That the Defendant, CITY was careless and reckless in hiring and retaining as and for its employees, the above named individuals Defendants Police Officers of the Highway District and NYPD Highway Patrol Unit 3, **POLICE OFFICER BOBBY GLOVER**, **POLICE OFFICER JOSEPH NAPOLITANO**, and OFFICERS JOHN AND JAMES DOE, names presently unknowable by Plaintiff, and meant to designate additional offending officers, in that the said Defendant Police Officers lacked the experience deportment and ability to be employed by the Defendant CITY; in that the Defendant CITY failed to exercise due care and caution in its hiring practices, and in particular, in hiring the Defendant Police Officer employees who lacked the mental capacity and the ability to function as an employee of the aforementioned Defendant CITY; in that Defendant Police Officers background and in that they hired and retained as an employee of their police department individuals whose backgrounds contained information (based information and belief) that revealed said Defendants lacked the maturity, sensibility, and intelligence to be employed by the Defendant CITY; in that the Defendant CITY knew of the lack of ability, experience, deportment and maturity of said Defendant employee Police Officers when they hired them to be employees; and, in that the Defendant CITY their agents, servants and employees were otherwise careless, negligent, and reckless.
59. That the aforesaid occurrence, to wit: the false arrest and false imprisonment, resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the

negligence of the Defendant CITY their agents, servants, and employees without any negligence on the part of PLAINTIFF.

60. That the acts of the Defendant CITY their agents, servants and employees in failing to properly discipline, hire and train their employees, agents, and servants presents a clear and present danger to the citizens of the CITY and State of New York.
61. By the reason of the foregoing, PLAINTIFF, was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous attacks and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and PLAINTIFF will be permanently caused to suffer pain and inconvenience and other effects of such injuries; and PLAINTIFF has incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of such said injuries; and PLAINTIFF has suffered and in the future will necessarily suffer additional loss of time from his usual pursuits, duties and activities; and PLAINTIFF will be unable to pursue PLAINTIFF's usual duties with the same degree of efficiency as prior to this occurrence all to PLAINTIFF's great damage.
62. By the reason of the foregoing, PLAINTIFF has been damaged in an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A TENTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF MICHAEL HOLDEN NEGLIGENCE IN HIRING, RETAINING, TRAINING AND SUPERVISING AS AGAINST THE DEFENDANT CITY

63. The PLAINTIFF, MICHAEL HOLDEN, hereby incorporates by reference each and every preceding paragraph 1-62 of this Complaint as though fully plead and re-alleged in

their entirety below.

64. That the Defendant CITY their agents, servants and employees failed to adequately and properly hire, retain, train, supervise, discipline or in any other way control the behavior and performance of the Defendants, their agents, servants and employees.
65. That Defendant CITY their agents, servants and employees in their failure to hire, train, supervise and discipline or in any other way control the Defendant Police Officers in their exercise of their functions to enforce the law of the state and City of New York, did act willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of the State of New York including, in this instance, the PLAINTIFF.
66. That the Defendant CITY was careless and reckless in hiring, retaining training and supervising as and for its employees, the above named individuals Defendants Police Officers of the Highway District and NYPD Highway Patrol Unit 3, POLICE OFFICER BOBBY GLOVER, POLICE OFFICER JOSEPH NAPOLITANO, and OFFICERS JOHN AND JAMES DOE, names presently unknowable by Plaintiff, and meant to designate additional offending officers, in that the said Defendants lacked the experience deportment and ability to be employed by the Defendant; in that the Defendant failed to exercise due care and caution in its hiring practices, and in particular, in hiring the Defendant employees who lacked the mental capacity and the ability to function as an employee of the aforementioned Defendant; in that Defendant's background and in that they hired and retained as an employee of their police department individuals whose backgrounds contained information (based information and belief) that revealed said

Defendants lacked the maturity, sensibility, and intelligence to be employed by the Defendant; in that the Defendants knew of the lack of ability, experience, deportment and maturity of said Defendant employee when they hired him to be an employee; and, in that the Defendants their agents, servants and employees were otherwise careless, negligent, and reckless.

67. That the aforesaid occurrence, to wit: the improper and insufficient training, false arrest and false imprisonment, and resulting injuries to mind and body therefrom were caused wholly and solely by reason of the negligence of the Defendant, its agents, servants and employees without any negligence on the part of the **PLAINTIFF**.
68. By the reason of the foregoing, **PLAINTIFF**, was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous attacks and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and **PLAINTIFF** will be permanently caused to suffer pain and inconvenience and other effects of such injuries; and **PLAINTIFF** has incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of such said injuries; and **PLAINTIFF** has suffered and in the future will necessarily suffer additional loss of time from his usual pursuits, duties and activities; and **PLAINTIFF** will be unable to pursue **PLAINTIFF's** usual duties with the same degree of efficiency as prior to this occurrence all to **PLAINTIFF's** great damage.
69. By the reason of the foregoing, **PLAINTIFF** has been damaged in an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A ELEVENTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF

**MICHAEL HOLDEN FOR MALICIOUS PROSECUTION AGAINST DEFENDANT
CITY:**

70. The PLAINTIFF, MICHAEL HOLDEN, hereby incorporates by reference each and every preceding paragraph 1-69 of this Complaint as though fully plead and re-alleged in their entirety below.
71. That by reason of the aforesaid Defendant CITY's unlawful and malicious prosecution and criminal charges and hearings, the PLAINTIFF was deprived of his liberty , was subjected to great indignity , pain, humiliation, and great distress of mind and body and was held up to scorn and ridicule, was irreparably injured in character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and the said PLAINTIFF has been otherwise damaged .
72. By the reason of the foregoing, PLAINTIFF, was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous attacks and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and PLAINTIFF will be permanently caused to suffer pain and inconvenience and other effects of such injuries; and PLAINTIFF has incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of such said injuries ; and PLAINTIFF has suffered and in the future will necessarily suffer additional loss of time from his usual pursuits, duties and activities; and PLAINTIFF will be unable to pursue PLAINTIFF's usual duties with the same degree of efficiency as prior to this occurrence all to PLAINTIFF's great damage .
73. By the reason of the foregoing, PLAINTIFF has been damaged in an amount

exceeding the jurisdictional limits of all lower Courts. July 10, 2019

AS AND FOR A TWELFTH CAUSE OF ACTION BEHALF OF PLAINTIFF MICHAEL HOLDEN FOR NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS AS AGAINST THE DEFENDANT CITY

74. The PLAINTIFF, MICHAEL HOLDEN, hereby incorporates by reference each and every preceding paragraph 1-73 of this Complaint as though fully plead and re-alleged in their entirety below.
75. That the Defendant CITY through its Defendant Police officers negligently, knowingly, recklessly arrested PLAINTIFF when they knew he did not commit any crimes, and engaged in conduct that is not expected or to be tolerated in a civilized society.
76. That such conduct shocks the conscious and PLAINTIFF demands damages therefrom.
77. By the reason of the foregoing, PLAINTIFF, was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous attacks and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and PLAINTIFF will be permanently caused to suffer pain and inconvenience and other effects of such injuries; and PLAINTIFF has incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of such said injuries; and PLAINTIFF has suffered and in the future will necessarily suffer additional loss of time from his usual pursuits, duties and activities; and PLAINTIFF will be unable to pursue PLAINTIFF's usual duties with the same degree of efficiency as prior to this occurrence all to PLAINTIFF's great damage.
78. By the reason of the foregoing, PLAINTIFF has been damaged in an amount exceeding the jurisdictional limits of all lower Courts.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF
MICHAEL HOLDEN FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
AS AGAINST DEFENDANT CITY:**

79. The PLAINTIFF, MICHAEL HOLDEN, hereby incorporates by reference each and every preceding paragraph 1-78 of this Complaint as though fully plead and re-alleged in their entirety below.
80. That due to the Defendants CITY's Police Officers of the Highway District and NYPD Highway Patrol Unit 3, POLICE OFFICER BOBBY GLOVER, POLICE OFFICER JOSEPH NAPOLITANO, and OFFICERS JOHN AND JAMES DOE, names presently unknowable by Plaintiff, and meant to designate additional offending officers, outrageous conduct, PLAINTIFF was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, by the actions of the Police.
81. That the defendant CITY through its Defendant Police intentionally, knowingly, and recklessly caused PLAINTIFF to be arrested for a crime they knew he did not commit and engaged in conduct that is not expected or to be tolerated in a civilized society.
82. That such conduct shocks the conscious and PLAINTIFF demands damages therefrom.
83. That this arrest went beyond what is considered reasonable and tolerable in a civilized society and shocks the conscious of the ordinary citizen.
84. By the reason of the foregoing, PLAINTIFF was severely injured and damaged , rendered sick, sore, lame and disabled , sustained severe nervous attacks and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration , and PLAINTIFF will be permanently caused to suffer pain and inconvenience

and other effects of such injuries ; and PLAINTIFF has incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of such said injuries ; and PLAINTIFF has suffered and in the future will necessarily suffer additional loss of time from his usual pursuits, duties and activities; and PLAINTIFF will be unable to pursue PLAINTIFF's usual duties with the same degree of efficiency as prior to this occurrence all to PLAINTIFF's great damage.

85. By the reason of the foregoing, PLAINTIFF has been damaged in an amount exceeding the jurisdictional limits of all lower Courts.

**AS AND FOR A FOURTEENTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF
MICHAEL HOLDEN FOR CIVIL RIGHT ACTION 42 USC §1983 AS AGAINST
DEFENDANT CITY:**

86. That PLAINTIFF, MICHAEL HOLDEN, hereby incorporates by reference each and every preceding paragraph 1-85 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.
87. That this is an action to redress the deprivation under color of state and/or federal statute, ordinance, regulation, custom or usage of right, privilege , and immunity secured to PLAINTIFF by the First, Fourth and Fourteenth Amendments to the Constitution of the United States (42 U.S.C. §§ 1983, 1981, 1985(3)) and arising under the Federal Constitution, statutes and laws as well as the laws and statutes of the State and Constitution of New York.
88. That the amount in controversy exceeds, exclusive of interest and costs the jurisdictional limits of this and any other court having jurisdiction .
89. That the PLAINTIFF did not commit any illegal act, either before or at the time he was

falsely arrested and imprisoned and deprived of his Constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. §§ 1981, 1983 and the Constitution of the State of New York.

90. That Defendant police officers acted under "color of law" to effect and enforce defendant "CITY," and "NYPD's" custom and practice known as "Zero Tolerance" or Quality of Life" police enforcement. Said policy, custom and practice instructs, trains, promotes and encourages police officers to engage in overzealous and abusive practices in effecting arrest. Said policy also results in the unwarranted, unlawful arrest of law-abiding citizens. Specifically, police officers are urged to strenuously enforce every minor offense on the books and to make their presence "felt" in the community with this type of enforcement. This practice has resulted in a sharp increase in police brutality and constitutional violations against citizens, and minorities in particular, including PLAINTIFF herein.
91. That defendants "CITY" and "NYPD" failed to properly train, manage, and supervise defendant Police Officers to perform as New York City police officers, and further failed to properly instruct said employees in the enforcement of the so called 'Quality of Life'/'Zero Tolerance' enforcement policy or to develop same as a sound practice, and are therefore responsible for the culpable acts of defendants police officers. Defendant "City" and "NYPD" negligently managed and directed the conduct of defendant Defendants Police Officers of the Highway District and NYPD Highway Patrol Unit 3, POLICE OFFICER BOBBY GLOVER, POLICE OFFICER JOSEPH NAPOLITANO, and OFFICERS JOHN AND JAMES DOE, names presently unknowable by Plaintiff, and meant to designate additional offending officers, having a

duty to properly manage and direct same, and are also thereby liable to **PLAINTIFF** for the damages he sustain ed.

92. That Defendants Police Officers of the Highway District and NYPD Highway Patrol Unit 3, **POLICE OFFICER BOBBY GLOVER, POLICE OFFICER JOSEPH NAPOLITANO**, and OFFICERS JOHN AND JAMES DOE, names presently unknowable by Plaintiff, and meant to designate additional offending officers, by engaging in this unlawful conduct of falsely arresting **PLAINTIFF** for crimes they knew he did not commit all under the color of State law without a warrant, or probable cause and then falsely arresting and imprisoning **PLAINTIFF**, severely deprived **PLAINTIFF** of his constitutional rights.
93. That Defendants Police Officers of the Highway District and NYPD Highway Patrol Unit 3, **POLICE OFFICER BOBBY GLOVER, POLICE OFFICER JOSEPH NAPOLITANO**, and OFFICERS JOHN AND JAMES DOE, names presently unknowable by Plaintiff, accordingly deprived **PLAINTIFF** of his civil rights pursuant to 42 U.S.C. § 1983. Further, as police officers employed by Defendant **CITY**, said Defendant Police Officers were acting under the color of State law when they violated **PLAINTIFF's** rights.
94. That the aforementioned misuse of authority and power by Defendants Police Officers of the Highway District and NYPD Highway Patrol Unit 3, **POLICE OFFICER BOBBY GLOVER, POLICE OFFICER JOSEPH NAPOLITANO**, and OFFICERS JOHN AND JAMES DOE, names presently unknowable by Plaintiff, all of which was tolerated and condoned by the City of New York through its Police Commissioner **BRATTON**,

was utterly egregious and shocking to the conscience. As a direct result, PLAINTIFF was caused to undergo the humiliation and indignities resulting from his unlawful confinement against will; and was caused and will continue to undergo and endure severe mental anguish, humiliation and economic hardship as a consequence thereof.

95. Such deprivation were in violation of the rights secured to PLAINTIFF by the First, Fourth, Fifth Fourteenth Amendments of the United States constitution and by Title 42 U.S.C. § 1983 and the laws, ordinances and statutes of the State of New York.
96. The Defendants, their agents, servants and employees, wrongfully and falsely arrested, imprisoned and detained the PLAINTIFF without any right, privilege or grounds.
97. The arrest and imprisonment was not justified by probable cause or other legal privilege; Defendants, their agents, servants and employees, acting under the color of law and under authority of their Office as Police Officers for the city falsely arrested the PLAINTIFF knowing that the PLAINTIFF had not violated any part of the New York State Penal Law.
98. That the Defendant CITY their agents, servants and employees failed to adequately and properly hire, retain, supervise, discipline or in any other way control the behavior and performance of the Defendant Police Officers, their agents, servants and employees.
99. That Defendants CITY their agents, servants and employees is in their failure to enforce the laws of the state of New York did act with reckless disregard to PLAINTIFF's rights in that they did not exercise that degree of due care which prudent and reasonable individuals would show in executing the duties of the Defendants.
100. That Defendant CITY their agents, servants and employees in their failure to hire, retain,

train, supervise and discipline or in any other way control the Defendant Police Officers in the exercise of their functions to enforce the law of the State and City of New York did act willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of the state of New York including PLAINTIFF.

101. That the acts of the Defendant CITY their agents, servants and employees relative in failing to properly discipline, hire, retain, train and supervise their employees, agents and servants is a presents a clear and present danger to the citizens of the City and State of New York.
102. The Defendants CITY their agents, servants and employees, wrongfully and falsely arrested, imprisoned and detained the PLAINTIFF without any right, privilege or grounds.
103. The arrest and imprisonment was not justified by probable cause or other legal privilege or grounds. Defendants their agents, servants and employees, acting under the color of law and under authority of their office as Police Officers for the city falsely arrested the PLAINTIFF knowing that the PLAINTIFF had not violated any part of the New York State Penal Law.
104. That said defendants, CITY and its Police Officers unlawfully and without probable cause, deprived PLAINTIFF of his right to be free from unreasonable search and seizure of his person, to the equal protection of the laws , and to due process of law, and abusively arrested PLAINTIFF in furtherance of defendant(s) "CITY" and "NYPD's" "Zero Tolerance" "Quality of Life" police enforcement policy. Said actions were without reason, in violation of the Fourth and Fourteenth Amendments of the Constitution of the United

States 42 U.S.C. Section 1983 and Article 1, Clause[s] 1, 11, and 12 of the Constitution and the laws of New York State. That by their wanton conduct, Defendants showed a blatant disregard for **PLAINTIFF's** Constitutional rights.

105. As a direct and proximate result of the deliberate , intentional, unlawful, and unconstitutional acts committed by defendants, **PLAINTIFF** was damaged in the sum exceeding the jurisdictional limits of this court and **PLAINTIFF** claims damages against defendant police officers in both their individual and official capacities, and against each defendant herein individually and jointly.

**AS AND FOR A FIFTEENTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF
MICHAEL HOLDEN CIVIL RIGHTS ACTION 42 USC§ 1985(3) AS AGAINST THE
DEFENDANT CITY:**

106. The **PLAINTIFF, MICHAEL HOLDEN**, hereby incorporates by reference each and every preceding paragraph 1-105 of this Summons and complaint as though fully plead and re-alleged in their entirety below.
107. That **PLAINTIFF** is innocent of all subject charges and will amend this complaint to reflect said dismissal of all charges against him.
108. The **PLAINTIFF** did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned and deprived of his Constitutional rights as a result of this conspiracy by the **NYPD** arresting officers.
109. That at all times hereinafter mentioned, the Defendants Police Officers of the Highway District and NYPD Highway Patrol Unit 3, **POLICE OFFICER BOBBY GLOVER, POLICE OFFICER JOSEPH NAPOLITANO**, and OFFICERS JOHN AND JAMES DOE, names presently unknowable by Plaintiff, each of them, separately and in concert

conspired for the purpose of depriving, either directly or indirectly, **PLAINTIFF** of the equal protection of the laws, or of equal privileges and immunities under the laws in that said Defendants did engage in the illegal conduct hereinbefore described and thus did deprive the **PLAINTIFF** of the equal protection of the laws, or of equal privileges and immunities secured to **PLAINTIFF** by the First and Fourteenth Amendments to the Constitution of the United States and the Laws of the United States. The unlawful and illegal conduct of the Defendants deprived the **PLAINTIFF** of the following rights, privileges and immunities secured to him by the Constitution of the United States and the State of New York.

110. The right of the **PLAINTIFF** to be secure in their persons and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments of the Constitution of the United States
111. The right of the **PLAINTIFF** to be informed of the nature and cause of the accusation against him so secured to them under the sixth and fourteenth amendments of the Constitution of the United States; and,
112. The right of the **PLAINTIFF** not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the law secured by the Fifth and Fourteenth Amendment to the Constitution of the United States.
113. That by reason of the aforesaid violations, false arrest, and false imprisonment, and battery and otherwise discriminatory treatment in violation of both the United States and New York State Constitutions, the Defendants conspired together to enter into a nefarious scheme to wrongfully deprive the **PLAINTIFF** and compelled him to abandon his rights

and privileges as provided to him in the Constitutional rights as set forth in the Constitution of the State of New York, and laws thereto, the Defendants, violated 42 U.S.C. §§ 1981, 1983, 1985 (3) in that the Defendants acted as persons who under color of any statute, ordinance, regulation, custom or usage of the City of New York, subjected or caused to be subjected, a citizen of the United States or other person within the jurisdiction, particularly the **PLAINTIFF** thereof to be deprived of his rights , privileges or immunities received by Constitution of the United States of America , and provided them by the Constitution of the State of New York; were subjected to Great indignities and humiliation , and pain and distress of mind and body and was held up to scorn and ridicule , injured in his character and reputation, was prevented from attending his usual business and vocation and was injured in his reputation in the community and the acts aforementioned were committed with the aim of injuring and damaging the **PLAINTIFF**.

114. That by reason of the aforesaid violations, to wit the false arrest, false imprisonment caused by the Defendants, who wrongfully deprived the **PLAINTIFF** and compel him to abandon his rights and privileges as provided to him in the Constitution of the United States of America, and in the Constitution of the United States of America, and in the Constitution of the State of New York, and laws thereto, the Defendants, acting within the scope of their authority and without any probable cause, caused the **PLAINTIFF** great harm because of the aforesaid illegal conduct.

115. As a direct and proximate result of the deliberate, intentional, unlawful , and unconstitutional acts committed by defendants, **PLAINTIFF** was damaged in the sum exceeding the jurisdictional limits of this court and **PLAINTIFF** claims damages

against defendant police officers in both their individual and official capacities , and
against each defendant herein individually and jointly .

**AS AND FOR A SIXTEENTH CAUSE OF ACTION ON BEHALF OF MICHAEL
HOLDEN FOR A MONELL CLAIM AS AGAINST THE DEFENDANT CITY**

116. The PLAINTIFF, MICHAEL HOLDEN, hereby incorporates by reference each and every preceding paragraph 1-115 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.
117. Defendant CITY, through a policy, practice and custom, directly caused the constitutional violations suffered by PLAINTIFF.
118. Upon information and belief, Defendant CITY, at all relevant times, was aware that the defendant Police Officers were unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.
119. Nevertheless, Defendant CITY exercised deliberate indifference by failing to take remedial action. The Defendant CITY failed to properly hire, retain, train , retrain, supervise, discipline, and monitor the individual defendant Police Officers and improperly retained and utilized them. Moreover, upon information and belief, Defendant CITY failed to adequately investigate prior complaints filed against the individual defendant Police Officers.
120. Further, defendants CITY was aware prior to the incident that the individual defendant Police Officers (in continuation of its illegal custom, practice and/or policy) would stop, arrest and prosecute innocent individuals, based on pretexts and false evidence.
121. In addition, the following are municipal policies, practices and customs: (1) arresting

innocent persons in order to meet productivity goals and justify overtime; (2) unlawfully stopping and searching persons; (3) fabricating evidence against innocent persons; (4) wrongfully arresting individuals based on pretexts and profiling; and (5) then maliciously prosecuting these individuals to cover up the aforementioned unconstitutional practices. (6) viciously assaulting plaintiff.

122. As a direct and proximate result of the deliberate, intentional, unlawful, and unconstitutional acts committed by defendants, **PLAINTIFF** was damaged in the sum exceeding the jurisdictional limits of this court and **PLAINTIFF** claims damages against defendant police officers in both their individual and official capacities, and against each defendant herein individually and jointly.

WHEREFORE, PLAINTIFF demands judgment against Defendants, and each of them on all the foregoing causes of action, in the form of compensatory damages for pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and Plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, and together with costs and disbursements.

Dated: New York, New York
July 18, 2019

Yours, etc.,

MARNI F. SCHLESINGER, ESQ.
Apicella & Schlesinger
Attorneys for Plaintiff
1454 St. Nicholas Avenue
New York, New York 10033
(212) 568-4245

Office of the Clerk

STATE OF NEW YORK, COUNTY OF New York

SS:

I, the undersigned, an attorney admitted to practice in the courts of New York State,

☐ I certify that the within
has been compared by me with the original and found to be a true and complete copy.

☒ I state that I am Marni F. Schlesinger, Esq.
the attorney of record for Michael Holden

in the within

action; I have read the foregoing Summons and Complaint and know the contents thereof
the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters

I believe it to be true. The reason this verification is made by me and not by the Plaintiff, the Plaintiff
does not reside in the County of New York, which is the
county where this firm maintains its office.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:
Records & investigation reports maintained
within the file.

I affirm that the foregoing statements are true, under the penalty of perjury.

Dated: 7/18/19

STATE OF NEW YORK, COUNTY OF

I, the undersigned, being duly sworn, depose and say, I am

☐ an individual
in the action; I have read the foregoing

and know the content thereof; the same is true to my own knowledge, except
as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true.

☐ I am a
the of

corporation and a party in the within action; I have read the foregoing
and know the content thereof; and the same is true to my own knowledge,

except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. This
verification is made by me because the above party is a corporation and I am an officer thereof.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

Sworn to before me on

The name signed must be printed beneath

STATE OF NEW YORK, COUNTY OF

SS:

I, the undersigned, being sworn, say: I am not a party to the action, am over 18 years of age and reside at

On I served the within

☐ Service
By Mail | by mailing a copy to each of the following persons at the last known address set forth after each name below.

☐ Personal
Service on Individual | by delivering a true copy of each personally to each person named below at the address indicated. I knew each person served
to be the person mentioned and described in said papers as a party to this

☐ Service by
Electronic Means | by transmitting a copy to the following person by ☐ FAX at the telephone number set forth after each name below. ☐ E-MAIL
at the E-Mail address set forth after each name below, which was designated by the attorney for such purpose, and by mailing a
copy to the address set forth after each name.

☐ Overnight
Delivery Service | by dispatching a copy by overnight delivery to each of the following persons at the last known address set forth after each
name below.